

EMPLOYMENT AGREEMENT BETWEEN CATALYST ASSOCIATES LTD. AND DELTA DYNAMICS INC.

Between: **Catalyst Associates Ltd.** (Employer) and **Delta Dynamics Inc.** (Employee)

Effective Date: 2022-04-19

Termination Date: 2020-08-26

Governing Law: the laws of the State of New York

1. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

2. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

3. Termination

Either Party may terminate this Agreement by giving 90 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Delta Dynamics Inc. shall pay for all Services rendered up to the date of termination.

4. Amendments

No amendment to this Agreement shall be valid unless made in writing and duly signed by authorised representatives of both Parties. Any waiver of any provision of this Agreement shall be effective only if in writing and shall not be deemed a waiver of any other provision.

5. Scope of Services

Catalyst Associates Ltd. shall provide to Delta Dynamics Inc. the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

6. Term

This Agreement shall commence on the Effective Date, 2022-04-19, and shall continue until 2020-08-26, unless earlier terminated in accordance with Clause 1. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

7. Limitation of Liability

In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits or data, even if advised of the possibility thereof. The aggregate liability of either Party under this Agreement shall not exceed Rs. 1,21,00,000 (Rupees One crore, twenty-one lakh Only). This limitation does not apply to obligations arising from Clause 2 or indemnification obligations.

8. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

9. Subcontracting

Catalyst Associates Ltd. shall not subcontract any material part of the Services without the prior written consent of Delta Dynamics Inc.. Where subcontracting is permitted, Catalyst Associates Ltd. shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 5 and Clause 7.

10. Indemnification

Catalyst Associates Ltd. shall indemnify, defend, and hold harmless Delta Dynamics Inc. and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Catalyst Associates Ltd.'s breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

11. Audit Rights

Delta Dynamics Inc. or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Catalyst Associates Ltd.'s records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Catalyst Associates Ltd.'s operations. The cost of the audit shall be borne by Delta Dynamics Inc., unless the audit reveals an overcharge of more than five percent (5%), in which case Catalyst Associates Ltd. shall bear the cost.

12. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Catalyst Associates Ltd. shall process personal data of Delta Dynamics Inc.'s employees or customers only as necessary to perform the Services and strictly in accordance with Delta Dynamics Inc.'s written instructions. Catalyst Associates Ltd. shall implement appropriate technical and organisational measures to protect such data.

13. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the State of New York. Subject to Clause 3, the courts of Chennai shall have exclusive jurisdiction over any dispute arising out of or relating to this Agreement.

14. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Chennai. The award shall be final and binding.

15. Payment Terms

Delta Dynamics Inc. shall pay Catalyst Associates Ltd. a fee of Rs. 1,21,00,000 (Rupees One crore, twenty-one lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Delta Dynamics Inc.. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

16. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

17. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

IN WITNESS WHEREOF

Employer

Catalyst Associates Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____

Employee

Delta Dynamics Inc.

Signature: _____

Name: _____

Title: _____

Date: _____